

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3130 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____ Amendment submitted by: Kevin West _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3130

By: West (Kevin), Olsen,
Woolley, Adams, and
Crosswhite Hader of the
House

and

Bullard of the Senate

FLOOR SUBSTITUTE

An Act relating to gender transition procedures;
amending Section 1, Chapter 150, O.S.L. 2023 (63 O.S.
Supp. 2025, Section 2607.1), which relates to health
services for minors; clarifying definition; providing
definition; including referrals and aiding and
abetting; providing for no limitation on punitive
damages; exempting immunity protection for employees
in certain actions; providing for codification; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 150, O.S.L.
2023 (63 O.S. Supp. 2025, Section 2607.1), is amended to read as
follows:

Section 2607.1. A. As used in this section:

1. "Child" or "minor" means any person under eighteen (18)
years of age;

1 2. a. "Gender transition procedures" means the following
2 medical or surgical services performed for the purpose
3 of attempting to affirm the minor's perception of his
4 or her gender or biological sex, if that perception is
5 inconsistent with the minor's biological sex:

6 (1) surgical procedures that alter or remove physical
7 or anatomical characteristics or features that
8 are typical for the individual's biological sex,
9 including, but not limited to, genital or chest
10 surgeries, or

11 (2) puberty-blocking drugs, cross-sex hormones, or
12 other drugs to suppress or delay normal puberty
13 or to promote the development of feminizing or
14 masculinizing features consistent with the
15 opposite biological sex.

16 b. Gender transition procedures do not include:

17 (1) ~~behavioral health care services or mental health~~
18 ~~counseling,~~

19 ~~(2)~~ medications to treat depression and anxiety,

20 ~~(3)~~

21 (2) medications prescribed, dispensed, or
22 administered specifically for the purpose of
23 treating precocious puberty or delayed puberty in
24 that patient,

~~(4)~~

(3) services provided to individuals born with ambiguous genitalia, incomplete genitalia, or both male and female anatomy, or biochemically verifiable disorder of sex development (DSD), including but not limited to:

- (a) 46,XX DSD,
- (b) 46,XY DSD,
- (c) sex chromosomes DSDs,
- (d) XX or XY sex reversal, and
- (e) ovotesticular disorder,

~~(5)~~

(4) the treatment of any infection, injury, disease, or disorder that has been caused by or exacerbated by the performance of gender transition procedures, whether or not the gender transition procedure was performed in accordance with state and federal law,

~~(6)~~

(5) the treatment of any physical injury or illness that would, as certified by a physician, place the individual in imminent danger of death or impairment of a major bodily function unless such treatment is performed, or

~~(7)~~

(6) the provision of puberty-blocking drugs or cross-sex hormones to a minor currently receiving such drugs or hormones as of ~~the effective date of this act~~ May 1, 2023, for a period of not more than six (6) months solely for the purpose of assisting the minor with gradually decreasing and discontinuing use of the drugs or hormones.;

3. "Health care provider" means a physician, physician assistant, Advanced Practice Registered Nurse, psychologist, counselor, therapist, social worker, behavioral health practitioner, or any other person who is licensed, certified, or otherwise authorized by the laws of this state to administer health care in the ordinary course of the practice of his or her profession; and

4. "State funds" includes funds appropriated by the Legislature or derived from any Oklahoma government agency or political subdivision.

B. A health care provider shall not knowingly ~~provide~~ perform, attempt to perform, or refer a child for a gender transition procedures to any child procedure.

C. No person shall knowingly aid or abet the performance or referral of a gender transition procedure on a child.

~~C.~~ D. A health care provider found in violation of subsection B of this section shall, upon an adverse ruling by the provider's

1 respective licensing board, be guilty of unprofessional conduct.

2 Disciplinary proceedings against the health care provider may be
3 commenced at any time after the commission of such offense.

4 ~~D.~~ E. A health care provider who violates subsection B of this
5 section shall, upon conviction, be guilty of a felony. Prosecution
6 for a criminal violation of subsection B of this section shall be
7 commenced not later than the date on which the child attains the age
8 of forty-five (45) years.

9 ~~E.~~ F. 1. The parent, legal guardian, or next friend of a child
10 to whom a health care provider has provided one or more gender
11 transition procedures in violation of subsection B of this section
12 may bring a civil action against the health care provider. The
13 parent, legal guardian, or next friend shall bring a claim for the
14 violation no later than the date on which the child attains the age
15 of majority.

16 2. A child to whom a health care provider has provided one or
17 more gender transition procedures may bring an action throughout his
18 or her minority through a parent, legal guardian, or next friend,
19 and may bring an action in his or her own name upon reaching
20 majority at any time until the date on which the child attains the
21 age of forty-five (45) years.

22 3. The court in such action may award compensatory damages,
23 punitive damages, injunctive relief, or any other appropriate
24 relief. Additionally, the court shall award court costs and

1 reasonable attorney fees to a prevailing party who establishes a
2 violation of this section.

3 4. Notwithstanding any other provision of law, an action under
4 this subsection may be commenced, and relief may be granted, in a
5 judicial proceeding without regard to whether the person commencing
6 the action has sought or exhausted available administrative
7 remedies.

8 ~~F.~~ G. The Attorney General may bring an action to enforce
9 compliance with this act. Nothing in this act shall be construed to
10 deny, impair, or otherwise affect any right or authority of the
11 Attorney General, the state, or an agency, officer, or employee of
12 the state to institute or intervene in any action or proceeding.

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 173 of Title 51, unless there is
15 created a duplication in numbering, reads as follows:

16 Employees who violate Section 2607.1 of Title 63 of the Oklahoma
17 Statutes are exempt from the immunity protections of The
18 Governmental Tort Claims Act.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

23

24 60-2-17230 TJ 03/25/26

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24